

Before the
FEDERAL MARITIME COMMISSION

Washington, DC 20573

Docket No. 22-21

MSRF Inc. v. Yang Ming Marine Transport Corporation.

**MSRF’S SUPPLEMENTAL MOTION FOR
CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS**

Pursuant to 46 C.F.R. §§ 502.5(b) and 502.69, Complainant MSRF, Inc. (“MSRF”) hereby moves to supplement its motion for confidential treatment of certain materials included in MSRF’s Appendix in Support of its Motion for Summary Decision.

1. On September 13, 2022, Respondent Yang Ming Marine Transport Corporation (“Yang Ming”) filed a Motion for Confidential Treatment of Portions of its Original Verified Answer and Exhibits (the “Motion”) arguing that Yang Ming’s Exhibits to its Answer constituted a confidential contract between MSRF and Yang Ming. Docket No. 22-21, Doc. No. 7. Yang Ming further argued that each contract between the Parties contained sensitive, confidential business information, disclosure of which would cause commercial harm to the Parties. Docket No. 22-21, Doc. No. 7.

2. MSRF did not oppose Yang Ming’s Motion. **Docket No. 22-21, Doc. No. 7.**

3. As a result, the Commission entered an order granting Yang Ming’s Motion on September 15, 2022.

4. On May 26, 2023, Administrative Law Judge Crovella entered an Order requesting the Parties to supplement their motions for confidential treatment to specifically identify the

information in the Parties' exhibits which they seek to keep confidential and the basis for the request.

5. To comply with the May 26 Order, MSRF will resubmit a revised public and non-public version of its appendix with the public version omitting the confidential documents. MSRF only seeks to keep confidential the contents of the Service Contract and Amendments to the Service Contract, the Damages Spreadsheet, and the booking information under the Service Contract. This information must remain confidential because it contains sensitive pricing information and other commercially sensitive rates and terms.

6. As part of the Appendix, MSRF attaches a Declaration of MSRF's principal David Reich. The Declaration includes various exhibits, including the service contract between the parties and emails between the parties which Yang Ming designated as confidential.

7. MSRF will file a public and non-public version of the appendix with the public version omitting the confidential documents

8. MSRF will also file a table listing confidential requests by bates number for materials that MSRF contends are entitled to confidential treatment.

WHEREFORE, MSRF, Inc. respectfully requests that its Supplemental Motion be granted, that it be given leave to file the confidential exhibits as part of a non-public version of the filing, and for all other relief deemed fair and proper.

Dated June 9, 2023

Respectfully submitted,
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CERTIFICATE OF SERVICE

I certify that on June 9, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of August 22, 2022.

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